

Court No. - 54

Case :- APPLICATION U/S 482 No. - 30837 of 2010

Petitioner :- Dinesh Sharma

Respondent :- State Of U.P. & Other

Petitioner Counsel :- Saurabh Basu

Respondent Counsel :- Govt.Advocate

Hon'ble Vinod Prasad,J.

Heard Sri Saurabh Basu, learned counsel for the applicant and learned A.G.A.

Prosecution of a crime is entirely a different matter then payment of Electricity dues. Merely by paying the Electricity dues it cannot be said that the committed offence under section 135 of Electricity Act is obliterated. Crime is a crime against the society. There is a provision for compounding of the offence under the Electricity Act. Compounding can be done only by the department after it so desires. It is not a wish of the accused that he can compel the department to compound the offence. Learned counsel for the applicant produced before me and a photo copy of an order passed by this court in Misc. Petition no. 31705 of 2009 under the recovery of Electricity Act, section 8.1 Electricity Supply Code, 2005.

I have perused the aforesaid judgment. The judgment has no application in criminal matter at all. As stated above, even if a person pays the entire dues along with electricity charges even then he can be prosecuted under section 135 of the Electricity Act for committed offence.

There is no merit in this Crl. Misc. Application, nor there is any reason to quash order dated 30.7.2010 passed by Additional Sessions Judge-Ist, Gautam Budh Nagar in Special Case no. 514 of 2008 (State versus Dinesh), arising out of Crime no. 396 of 2008, under section 135 Electricity Act, P.S. Sector-58, Noida, District Gautam Budh Nagar pending in the court of Additional Sessions Judge-Ist, Gautam Budh Nagar.

This Crl. Misc. Application is bereft of merit and is accordingly dismissed.

Order Date :- 28.9.2010

F.H.